

M/s Moolchand Steels Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 August 2025 · 2025:AHC:129694-DB · Writ-C No. 34562 of 2012 · **Writ petition dismissed as not pressed.**

HEADNOTE

Writ by a consumer who had opted for a pre-payment meter, challenging an additional-security demand under section 47(2) of the Electricity Act, 2003 and the vires of Electricity Supply Code, 2005 clause 4.20(l) vis-à-vis section 47(5), dismissed as not pressed. A 2012 stay of the demand on an undertaking was without prejudice and decided nothing on the merits.

FACTUAL SUMMARY

M/s Moolchand Steels challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s 23 April 2012 demand of additional security. It said it had opted for a pre-payment meter, so the demand under section 47(2) of the Electricity Act, 2003 was illegal under section 47(5), and that clause 4.20(l) of the Electricity Supply Code, 2005 was ultra vires that provision. In 2012 the Court stayed the demand on an undertaking and connected the writ with similar petitions. In 2025 the petitioner did not press the petition.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ dismissed as not pressed

HOLDING

The writ challenging the additional-security demand and the vires of Supply Code clause 4.20(l) vis-à-vis section 47(5) of the Electricity Act, 2003 was dismissed as not pressed. The 2012 interim stay of the demand, granted on an undertaking and without prejudice, decided nothing on the merits. ¶ 1

PRINCIPLE TAGS

prepayment-meter-exemption-conditional-on-availability Writ by a consumer who had opted for a pre-payment meter, challenging an additional-security demand under section 47(2) of the Electricity Act, 2003 and the vires of Electricity Supply Code, 2005 clause 4.20(l) vis-à-vis section 47(5), dismissed as not pressed.. ¶ 1

procedural-listing-no-construction Writ by a consumer who had opted for a pre-payment meter, challenging an additional-security demand under section 47(2) of the Electricity Act, 2003 and the vires of Electricity Supply Code, 2005 clause 4.20(l) vis-à-vis section 47(5), dismissed as not pressed.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY MAY BE DEMANDED UNDER SECTION 47(2) FROM A CONSUMER WHO HAS OPTED FOR A PRE-PAYMENT METER, IN VIEW OF SECTION 47(5)

Raised in 2012; petition later not pressed

NOT DECIDED — WHETHER CLAUSE 4.20(L) OF THE ELECTRICITY SUPPLY CODE, 2005 IS ULTRA VIRES SECTION 47(5)

Raised in 2012; petition later not pressed

NOT DECIDED — WHETHER SECURITY REGULATIONS UNDER SECTION 181(2)(V) HAD BEEN FRAMED, AND THE OVERRIDING EFFECT OF SECTION 174

Raised in 2012; petition later not pressed

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.